IN THE UNITED STATES BANKRUPTCY COURT
FOR THE DISTRICT OF DELAWARE

In re: FTX TRADING LTD., *et al.*,[1] Debtors.	Chapter 11 Case No. 22-11068 (JTD) (Jointly Administered) **Hearing Date: August 2, 2023 at 10:00 a.m. (ET)** **Objection Deadline: July 26, 2023 at 4:00 p.m. (ET)**

MOTION OF TERRAFORM LABS PTE LTD. FOR LEAVE TO SERVE RULE 45 DOCUMENT SUBPOENAS ON DEBTORS

Terraform Labs PTE Ltd. ("TFL") respectfully moves this Court for an order permitting TFL to serve FTX Trading Ltd. and West Realm Shires Services Inc. d/b/a FTX US (collectively, the "Debtors") each with subpoenas under Rule 45 of the Federal Rules of Civil Procedure ("FRCP 45"). TFL seeks limited document discovery on unrelated claims that do not affect Debtors. In support of this Motion, TFL submits Chris Amani's Declaration as **Exhibit A** ("Amani Decl."). TFL asks this Court to enter the Order substantially in the form attached to the Motion as **Exhibit B**, either confirming that the automatic stay permits TFL's proposed limited discovery or modifying the stay so that TFL can effectuate such discovery through the New York court, without any delay.

PRELIMINARY STATEMENT

1. On April 3, 2023, the U.S. Securities and Exchange Commission ("SEC") filed an amended complaint against TFL and one of its co-founders in the United States District Court for the Southern District of New York ("SEC Action"). The SEC Action is unrelated to the Debtors:

[1] The last four digits of FTX Trading Ltd. and West Realm Shires Services Inc. d/b/a FTX US's respective tax identification numbers are 3288 and 4002. A complete list of the numerous Debtors in these Chapter 11 cases, and their federal tax identification numbers, is available at https://cases.ra.kroll.com/FTX. Debtor Emergent Fidelity Technologies Ltd.'s principal place of business is Unit 3B, Bryson's Commercial Complex, Friars Hill Road, St. John's, Antigua and Barbuda.

no Debtor is a defendant and it does not affect any Debtor.

2. One of the SEC's claims alleges that TFL falsely represented the ability of the algorithmic "mint/burn" mechanism utilized by the UST stablecoin, one of the cryptocurrencies developed by TFL, to withstand market forces in the event of a depeg, which led to the depeg of UST from its price peg in May 2021 and May 2022. Specifically, the SEC alleges that after the market price of UST declined from its peg of one U.S. Dollar in May 2021 and then recovered shortly thereafter, Defendants misrepresented UST's recovery by claiming that the algorithm was able to restore and maintain the price peg. According to the SEC, UST instead recovered its price peg because Defendants entered an arrangement with a U.S. trading firm, Jump Trading LLC ("Jump"), to purchase substantial amounts of UST to support the price. TFL disputes these allegations.

3. The SEC also contends that the actions it alleges that Defendants took led to a $40 billion loss in market capital, including devastating losses for U.S. retail and institutional investors. Amani Decl. ¶ 1. TFL contends that a coordinated "short" attack by third parties caused the May 2022 depeg. Large UST holder(s) executed the short via multiple exchanges, wallets/accounts, and assets, including swapping Terra-native assets (UST, LUNA, MIR, mAssets, and ANC) for non-native assets (BTC, USDT, USDC, etc.). The attack catalyzed massive asset withdrawals from protocol(s) developed by TFL, and flooded FTX and other markets with sell/offer orders.

4. To establish these defenses, TFL needs Debtors' records about wallets, accounts, and assets used to transact on the FTX International and US exchanges and sales/offers of large volumes of cryptocurrencies developed by TFL, if any, by FTX Trading and West Realm Shires Services Inc. d/b/a FTX US. This evidence is in the Debtors' possession, custody, and/or control. TFL seeks information from the centralized FTX International and US Exchanges about wallets

used by Jump Trading LLC to trade UST or LUNA on these exchanges from May 1 to May 31, 2021 and May 1 to May 31, 2022; wallets and trading accounts used to deposit/transfer/trade assets used by short sellers from March 1 to May 31, 2022; other wallets and trading accounts that could have been used by these or other short sellers; their balances/holdings; and identities of owners/controllers for the period between January 1, 2018 to the present ("Subpoena Period") (the "Proposed Limited Discovery"), which can be produced subject to the Protective Order entered in the SEC Action (attached to this Motion as **Exhibit C**). Amani Decl. ¶ 14.

5. While TFL believes service of its proposed Limited Discovery under narrowly tailored FRCP 45 subpoenas issued in connection with the SEC Action on the Debtors would not violate the automatic stay under 11 U.S.C. § 362(a), TFL seeks authorization and confirmation from this Court that TFL may serve such discovery. In the alternative, TFL has "cause" for this Court to provide limited relief from the automatic stay for TFL to serve such discovery. TFL can *only* obtain this information—which is proprietary to Debtors—via FRCP 45 subpoenas on Debtors, and it is vital to TFL's defense. Without such discovery, TFL will be substantially and irreparably harmed.

6. Should this Court grant the motion, TFL also asks such Order take effect immediately. Expedience is crucial: trial is expected after November 30, 2023, and the New York court with the pending SEC Action will need time to issue the FRCP 45 subpoena(s) to Debtors.

JURISDICTION & VENUE

7. This Court has jurisdiction over this Motion pursuant to 28 U.S.C. §§ 157 and 1334 and the February 29, 2012, Amended Standing Order of Reference from the U.S. District Court for the District of Delaware. This is a "core proceeding" under 28 U.S.C. § 157(b)(2).

8. Venue in this district is proper pursuant to 28 U.S.C. §§ 1408 and 1409.

9. Pursuant to Rule 9013-1(f) of the Local Rules of Bankruptcy Practice and Procedures of the U.S. Bankruptcy Court for the District of Delaware, TFL consents to the entry of a final order or judgment by the Court in connection with this Motion to the extent it is later determined that the Court, absent consent of the parties, cannot enter final orders or judgment consistent with Article III of the U.S. Constitution.

10. The statutory predicate for the relief requested is section 362(d)(1) of the Bankruptcy Code.

BACKGROUND

11. Terraform Labs PTE ("TFL") is a Singaporean open-source software development firm, founded to address the interference of price volatility of cryptocurrencies with the ability to use cryptocurrencies as a medium of exchange. Amani Decl. ¶ 3. In 2018, TFL developed a novel approach to this problem by creating the Terra protocol, a decentralized and open-source public blockchain protocol for algorithmic stablecoins. *Id.* Unlike the Debtors, TFL did not operate a market or have customers or customer funds. *Id.*

12. The Terra protocol relied upon a dual native cryptocurrency token system: a stablecoin TerraUSD ("UST") and a companion non-stablecoin LUNA. UST and LUNA were designed to maintain a stable price peg—targeting a 1:1 exchange rate—to the US dollar or other fiat currency. *Id.* ¶ 4. LUNA operated as a stabilization mechanism to maintain the 1:1 UST price peg for UST by minting and burning tokens. *Id.* TFL also developed two protocols, the Mirror Protocol, which created synthetic assets (Mirrored Assets or "mAssets") to provide exposure to assets with publicly available price feeds without holding the underlying assets; and Anchor Protocol ("ANC"), a borrowing and saving protocol. *Id.*

13. Kwon Do-Hyung ("Do Kwon") co-founded TFL in December 2018 and was

initially the CEO of TFL. Mr. Kwon has departed TFL, and since his departure, Chris Amani became the CEO. *Id.* ¶ 1.

14. In May 2021, the SEC issued a formal order of investigation commencing an investigation into potential securities registration issues relating to the Mirror Protocol. In May 2021, the market price of UST declined from its peg to the US dollar (a "de-pegging"), but later recovered its peg. *Id.* ¶ 5.

15. Between May 1 through May 31, 2021, the market price of UST declined from its peg of one United States Dollar but later recovered. *Id.* ¶ 5. Although the SEC alleges that Defendants misrepresented UST's recovery in May 2021 by claiming that the algorithm was able to restore and maintain the price peg; when—according to the SEC—it instead recovered because Defendants entered an arrangement with Jump to purchase substantial amounts of UST to support the price, TFL contends that trades of UST by Jump was not the cause for the restoration of the peg in 2021. *Id.* ¶ 5.

16. Between March 1, 2022, through May 31, 2022, short sellers likely used the Debtors' FTX platform to purchase options and to conduct purchases, sales and related trades of TFL's cryptocurrencies and other cryptocurrencies to prepare for and use throughout the short attack. *Id.* ¶ 6. Publicly available order book information shows that sellers used FTX accounts to submit massive sell orders on May 7, 2022 just after 10:00 am UTC at the beginning of the short attack and for the next few days of the attack. *Id.* Publicly available blockchain data also shows that wallets identified as involved in the attack transferred the proceeds of their sales of UST to FTX exchange deposit wallets. *Id.*

17. In May 2022, there was a demonstrably large wave of UST sales, i.e., "a run" on the Anchor protocol, executed by large UST holder(s) via multiple exchanges, wallets/accounts,

and assets, including Terra-native tokens (UST, LUNA, MIR, mAssets, and ANC) and non-native tokens (BTC, USDT, USDC, etc).

a. On May 7, 2022, unknown large UST holders started a flood of "sell orders" for UST, resulting in withdrawals of over $2 billion worth of UST from the Anchor Protocol. Hundreds of millions of dollars of UST were quickly liquidated, decreasing the UST price slightly below its peg. As other UST holders monitored the blockchain, they withdrew their Anchor holdings and/or quickly redeemed their UST for Luna, creating an explosion in the supply of Luna. The sudden increase in UST sell orders made it more difficult to match them with corresponding "buy" orders, which created more downward price pressure on UST, causing it to depeg.

b. On May 9, 2022, the rate of Anchor withdrawals intensified as the market capitalization of LUNA became equal to the outstanding UST supply. The value of UST dropped to $0.75.

c. By the end of May 13, Anchor had fewer than 2 billion UST remaining, and the value of UST had declined to below $0.2. Although LFG and TFL expended billions of US dollars attempting to defend the UST peg, the sell pressure overwhelmed the resources available to defend the peg and both coins lost the majority of their values.

Amani Decl. ¶¶ 7–10.

18. On November 11, 2022 (the "Petition Dates"), each of the Debtors filed with the Court a voluntary petition for relief under 11 U.S. Code Chapter 11 (the "Bankruptcy Code"). Amani Decl. ¶ 11. The Debtors continue to operate their businesses and manage their properties as debtors-in-possession pursuant to sections 1107(a) and 1108 of the Bankruptcy Code. Amani Decl. ¶ 11.

19. On February 16, 2023, the SEC commenced a lawsuit against TFL and Mr. Kwon in the U.S. District Court for the Southern District of New York, captioned *Securities and Exchange Commission v. Terraform Labs Pte. Ltd. And Do Hyeong Kwon*, Civ. No. 1:23-cv-01346-JSR (S.D.N.Y.) (the "SEC Action"). Amani Decl. ¶ 12.

20. The SEC Action complaint alleges that between April 2018 through May 2022, TFL and Mr. Kwon offered and sold what the SEC calls an inter-connected suite of "crypto asset securities" in violation of the U.S. Securities Act and the Exchange Act. The SEC asserts, *inter alia*, that losses that may have happened during the May 2022 depeg are the result of fraud by TFL and Mr. Kwon. However, TFL intends to assert the defense that the depeg was due to an intervening causal event—the short—such that neither TFL nor Mr. Kwon may be held liable. Amani Decl. ¶ 13.

21. No Debtor is a party to the SEC Action and no claim is being asserted against any Debtor in the SEC Action. Amani Decl. ¶ 12.

22. To effectively defend itself against the SEC Action, TFL requires certain narrow categories of suspected short-selling activity, including specific account, wallets, and the identity of their controllers over the Subpoena Time Period, which are records in the Debtors possession. These records are crucial to TFL's defense in the SEC Action—for example, for TFL's experts to perform crucial blockchain analysis of the short-sellers' trading and market activity to combat the SEC's allegations, among other things. TFL seeks to discover these narrow records solely as they pertain to TFL's claims and defenses of TFL. Amani Decl. ¶ 14.

RELIEF REQUESTED

23. Since no Debtor is a defendant in the SEC Action and no claims are asserted in the SEC Action against any Debtor, TFL submits that TFL's proposed service of limited discovery—

narrowly-tailored FRCP 45 subpoenas—on the Debtors does not run afoul of the automatic stay under section 362(a) of the Bankruptcy Code. Out of an abundance of caution, TFL seeks entry of an order authorizing TFL to effectuate its Proposed Limited Discovery and confirming that such action does not violate the automatic stay, or in the alternative, granting TFL limited relief from the automatic stay solely to the extent necessary for TFL to effectuate such discovery. TFL also asks that any such order take effect immediately.

BASIS FOR RELIEF

I. <u>TFL's Requested Action Does Not Violate the Automatic Stay Under Section 362(a) of the Bankruptcy Code</u>

24. Bankruptcy Procedure Rule 9016 provides that FRCP 45 applies to bankruptcy proceedings. "Although the scope of the automatic stay is broad, the clear language of section 362(a) stays actions only *against* a 'debtor.'" *McCartney v. Integra Nat. Bank North*, 106 F.3d 506, 509 (3d Cir. 1997) (citation omitted) (emphasis added). Additionally, "it is well accepted that the automatic stay does not prevent discovery aimed at a debtor as long as the discovery pertain[s] to claims and defenses of a non-debtor party." *In re Irwin*, 457 B.R. 413, 426, n.26 (Bankr. E.D. Pa. 2011) (citation omitted); *see also In re Hillsborough Holdings Corp.*, 130 B.R. 603, 605 (Bankr. M.D. Fla. 1991) (holding automatic stay did not prevent discovery aimed at debtor as long as the discovery pertained to claims and defenses of a non-debtor party); *see also*, *e.g.*, *Groner v. Miller (In re Miller)*, 262 B.R. 499, 503 (9th Cir. BAP 2001) (holding automatic stay did not prevent subpoenas to debtor for discovery on claims against non-debtors that were not stayed, even if the information to be elicited from the debtor may later be used against the debtor); *Peter Rosenbaum Photography Corp. v. Otto Doosan Mail Order Ltd.*, 2004 WL 2973822, at *3 (N.D. Ill. Nov. 30, 2004) (citing *id.*) ("[I]t is clear that plaintiff would be entitled to serve and proceed with discovery against [the debtor], even if [the debtor] were a defendant in this action, provided

the discovery is directed towards the claims against [non-debtor] defendants. . . .").

25. As explained herein, no Debtor entity is a named defendant in the SEC Action and no claims are asserted against any Debtor in the SEC Action—not a single paragraph of the Amended Complaint in SEC Action mentions Debtors or their jointly administered affiliates. TFL requires certain limited discovery from the Debtors solely as it "pertain[s] to claims and defenses of a non-debtor party[, TFL]." *In re Irwin*, 457 B.R. 413 at 426. The limited and narrow proposed discovery will place virtually no burden upon the Debtors and will not interfere in any respect with their ability to rehabilitate under chapter 11. As such, the relief requested herein does not run afoul of section 362(a) of the Bankruptcy Code, and TFL respectfully submits that it is appropriate for the Court to enter an order authorizing TFL to effectuate its Proposed Limited Discovery by serving the Debtors with narrow FRCP 45 subpoenas relating to the SEC Action and confirming such action does not violate the automatic stay.

II. Even if the Automatic Stay Extends to TFL's Proposed Limited Discovery, Cause Exists for Limited Relief from the Automatic Stay to Effectuate the Proposed Limited Discovery

26. Section 362(d)(1) of the Bankruptcy Code provides that "the court shall grant relief from the stay . . . for cause." In a determination of "cause," the moving party bears the initial burden to establish a *prima facie* case for which the party opposing the relief must then rebut. *Izzarelli v. Rexene* (*In re Rexene Prods. Co.)*, 141 B.R. 574, 577 (Bankr. D. Del. 1992).

27. "Cause" is not defined in the Bankruptcy Code. "Cause is a flexible concept and courts often conduct a fact intensive, case-by-case balancing test, examining the totality of the circumstances to determine whether sufficient cause exists to lift the stay." *In re SCO Grp., Inc.*, 395 B.R. 852, 856 (Bankr. D. Del. 2007) (citations omitted). The automatic stay "is not meant to be absolute, and in appropriate instances relief may be granted." *Id.* The Third Circuit has

instructed courts to use "wide latitude" in determining whether to grant relief from stay. *In re Myers*, 491 F.3d 120, 129-30 (3d Cir. 2007). "The purpose of the automatic stay is to maintain the status quo that exists at the time of the debtor's bankruptcy filing." *Pardo v. Nylcare Health Plans, Inc.* (*In re APF Co.)*, 274 B.R. 408, 417 (Bankr. D. Del. 2001) (citation omitted).

28. "Because results are dictated by the unique facts of a particular case, there are generally no precise standards to apply [when evaluating whether cause exists to grant relief from the automatic stay]." *The Buncher Co. v. Flabeg Solar US Corporation (In re Flabeg Solar US Corp.)*, 499 B.R. 475, 482-83 (Bankr. W.D. Pa. 2013) (citation omitted). "Among the relevant factors, courts consider the interests of the debtor, creditors, and parties in interest as well as the underlying policies of the Bankruptcy Code." *Id*. at 483.

29. Notably, this Court recently granted a Motion of Pyth Data Association for relief from the automatic stay so that the Association and the rest of its community could continue developing the public blockchain-based software for the Pyth Protocol and Network. *See* ECF No. 1693 (June 23, 2023). As explained below, the relief sought here by TFL is far more urgent and limited in its nature.

30. TFL submits that "cause" within the meaning of section 362(d) of the Bankruptcy Code exists to lift the automatic stay to allow TFL to serve and conduct its Proposed Limited Discovery of the Debtors. The Proposed Limited Discovery is crucial to TFL's defense of the SEC Action, and TFL would suffer substantial and potentially irreparable harm if denied the ability to seek such discovery. Debtors possess specific information concerning the suspected short sellers' wallet activity, trading activity, and accounts during the Subpoena Period, in addition to other information relevant to the short. This day-to-day wallet and trading activity is directly relevant to the SEC's allegations about TFL's operations over the same time period and TFL's defense

thereof. TFL seeks affirmative pre-petition relief: FTX did not file for bankruptcy until November 2022, months after TFL's May 2022 depeg. TFL can and should be able to obtain them from Debtors, who should have held and maintained these records during the ordinary course of its business. TFL cannot obtain this information in any other way. Amani Decl. ¶ 15.

31. TFL would suffer extreme prejudice absent such discovery, whereas the Proposed Limited Discovery would *not* prejudice the Debtors, creditors, or any other party in interest. The proposed discovery is narrow in scope: TFL only seeks specific and relevant records over a limited time period relevant to the SEC Action. All of these records are in the Debtors' possession. The continuation of litigation in the Southern District of New York likewise would not prejudice any party in interest: the Debtors are not parties to the SEC Action, and the underlying policies of the Bankruptcy Code would be promoted by the relief sought herein as the Proposed Limited Discovery would only serve to "maintain the status quo that exists at the time of the debtor's bankruptcy filing." *Pardo*, 274 B.R. at 417.

III. **<u>After the Entry of any Order Granting this Motion, TFL Should be Permitted to Serve its Proposed Discovery Immediately</u>**

32. Should this Court grant the Motion, TFL respectfully asks that this Court waive the optional fourteen-day stay period, as it benefits no party and only prejudices TFL. TFL requires expedient action on its Proposed Limited Discovery in order to effectively defend against the SEC Action, especially since trial is anticipated for shortly after Nov. 30, 2023. *See Order Granting Motion of Pyth Data Association for Relief from the Automatic Stay,* ECF No. 1693 (June 23, 2023) (granting relief effective upon entry and waiving 14-day stay under Rule 4001(h)).

33. Federal Rule of Bankruptcy Procedure 4001(a)(3) provides "[a]n order granting a motion for relief from an automatic stay made in accordance with Rule 4001(a)(1) is stayed until the expiration of 14 days after entry of the order, unless the court orders otherwise." However,

Rule 4001(a)(3) is only a default rule, which can be modified if the Court orders otherwise. *Id*. TFL respectfully submits that this optional fourteen-day stay period serves no relevant purpose here and should be waived in any order granting relief from the automatic stay, so that any order granting relief from the automatic stay be effective immediately upon entry.

Notice

34. Notice of this Motion will be provided to: (i) the Debtors; (ii) the Official Committee of Unsecured Creditors; (iii) U.S. Trustee; (iv) the Securities and Exchange Commission; (v) the Internal Revenue Service; (vi) the United States Department of Justice; (vii) the United States Attorney for the District of Delaware; and (viii) those parties requesting notice pursuant to Bankruptcy Rule 2002. In light of the nature of the relief requested, TFL submits no further notice is required.

CONCLUSION

WHEREFORE, TFL respectfully requests entry of an Order, substantially in the form attached as **Exhibit C**, (i) authorizing TFL to effectuate its Proposed Limited Discovery and confirming that such action does not violate the automatic stay, or in the alternative (ii) granting TFL limited relief from the automatic stay solely to the extent necessary for TFL to effectuate such Proposed Limited Discovery; (iii) waiving the optional fourteen-day stay period after any such Order is entered; and (iv) granting such other relief as is just and equitable under the circumstances.

[*Signature block on following page*.]

Date: July 19, 2023

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Exhibit A

IN THE UNITED STATES BANKRUPTCY COURT
FOR THE DISTRICT OF DELAWARE

In re: FTX TRADING LTD., *et al.*,[1] Debtors.	Chapter 11 Case No. 22-11068 (JTD) (Jointly Administered)

DECLARATION OF CHRIS AMANI IN SUPPORT OF MOTION OF TERRAFORM LABS PTE LTD. FOR LEAVE TO SERVE RULE 45 DOCUMENT SUBPOENAS ON DEBTORS

I, Chris Amani, do declare as follows under penalty of perjury pursuant to 28 U.S.C. § 1746, and the below is true and correct to the best of my knowledge and belief:

1. I am the current Chief Operating Officer and Chief Financial Officer of Terraform Labs. Kwon Do-Hyung ("Do Kwon") co-founded TFL in December 2018 and was initially the CEO of TFL. Mr. Kwon has since departed TFL, after which time I became the CEO.

2. I submit this declaration in support of the afore-captioned Motion.[2] The contents of the Motion are true and correct to the best of my knowledge and belief.

3. TFL is a Singaporean open-source software development firm, founded to address the interference of price volatility of cryptocurrencies with the ability to use cryptocurrencies as a medium of exchange. In furtherance of its mission, TFL operates a price-stable cryptocurrency and provides financial infrastructure for the next generation of decentralized application. TFL did not operate a market or have customers/customer funds.

4. The Terra protocol relied upon a dual native cryptocurrency token system: a

[1] The last four digits of FTX Trading Ltd. and West Realm Shires Services Inc. d/b/a FTX US's respective tax identification numbers are 3288 and 4002. A complete list of the numerous Debtors in these Chapter 11 cases, and their federal tax identification numbers, is available at https://cases.ra.kroll.com/FTX. Debtor Emergent Fidelity Technologies Ltd.'s principal place of business is Unit 3B, Bryson's Commercial Complex, Friars Hill Road, St. John's, Antigua and Barbuda.

[2] Capitalized terms not otherwise defined herein shall have the meanings ascribed to them in the Motion.

stablecoin TerraUSD ("UST") and a companion non-stablecoin LUNA. UST and LUNA were designed to maintain a stable price peg—targeting a 1:1 exchange rate—to the US dollar or other fiat currency. LUNA operated as a stabilization mechanism to maintain the 1:1 UST price peg for UST by minting and burning tokens. TFL also developed two protocols, the Mirror Protocol, which created synthetic assets (Mirrored Assets or "mAssets") to provide exposure to assets with publicly available price feeds without holding the underlying assets; and Anchor Protocol ("ANC"), a borrowing and saving protocol.

5. In May 2021, the market price of UST declined from its peg to the US dollar (a "de-pegging"), but later recovered its price peg. In its amended complaint, the SEC alleges that Defendants misrepresented the cause of UST's recovery in May 2021 by claiming that the algorithm was able to restore and maintain the price peg. According to the SEC, the peg recovered because Defendants entered an arrangement with Jump to purchase substantial amounts of UST to support the price. TFL contends that Jump's trading did not cause the restoration of the peg in 2021.

6. Between March 1, 2022, through May 31, 2022, short sellers likely used the Debtors' FTX platform to purchase options and to conduct purchases, sales and related trades of TFL's cryptocurrencies and other cryptocurrencies to prepare for and use throughout the short attack. Publicly available order book information shows that sellers used FTX accounts to submit massive sell orders on May 7, 2022 just after 10:00 am UTC at the beginning of the short attack and for the next few days of the attack. Publicly availably blockchain data also shows that wallets identified as involved in the attack transferred the proceeds of their sales of UST to FTX exchange deposit wallets.

7. In May 2022, there was a demonstrably large wave of UST sales, i.e., "a run" on

the Anchor protocol, executed by large UST holder(s) via multiple exchanges, wallets/accounts, and assets, including Terra-native tokens (UST, LUNA, MIR, mAssets, and ANC) and non-native tokens (BTC, USDT, USDC, etc).

8. On May 7, 2022, unknown large UST holders started a flood of "sell orders" for UST, resulting in withdrawals of over $2 billion worth of UST from the Anchor Protocol. Hundreds of millions of dollars of UST were quickly liquidated, decreasing the UST price slightly below its peg. As other UST holders monitored the blockchain, they withdrew their Anchor holdings and/or quickly redeemed their UST for Luna, creating an explosion in the supply of Luna. The sudden increase in UST sell orders made it more difficult to match them with corresponding "buy" orders, which created more downward price pressure on UST, causing it to depeg.

9. On May 9, 2022, the rate of Anchor withdrawals intensified as the market capitalization of LUNA became equal to the outstanding UST supply. The value of UST dropped to $0.75.

10. By the end of May 13, Anchor had fewer than 2 billion UST remaining, and the value of UST had declined to below $0.2. Although LFG and TFL expended billions of US dollars attempting to defend the UST peg, the sell pressure overwhelmed the resources available to defend the peg and both coins lost the majority of their values.

11. I understand that on November 11, 2022 (the "Petition Date"), each of the Debtors filed with the United States Bankruptcy Court for the District of Delaware a voluntary petition for relief under chapter 11 of title 11 of the U.S. Code (the "Bankruptcy Code"). *See* ECF No. 3. The Debtors continue to operate their businesses and manage their properties as debtors-in-possession pursuant to sections 1107(a) and 1108 of the Bankruptcy Code.

12. On February 16, 2023, the SEC commenced a lawsuit against TFL and its chief

executive officer in the U.S. District Court for the Southern District of New York, captioned at *Securities and Exchange Commission v. Terraform Labs Pte. Ltd. And Do Hyeong Kwon*, Civ. No. 1:23-cv-01346-JSR (S.D.N.Y.) (the "SEC Action"). No Debtor is a party to the SEC Action, no action is being sought against any Debtor in the SEC Action, and the SEC Action is wholly unrelated to the Debtors.

13. The SEC Action complaint alleges that between April 2018 through May 2022, TFL and Mr. Kwon offered and sold what the SEC calls an inter-connected suite of "crypto asset securities" in violation of the U.S. Securities Act and the Exchange Act. The SEC asserts, *inter alia*, that the fraudulent scheme it alleges was perpetrated by TFL and Do Kwon led to the loss of $40 billion in market value in the May 2022 depeg. However, TFL intends to assert the defense that the depeg was due to an intervening causal event—the short—such that neither TFL nor Mr. Kwon may be held liable.

14. TFL is actively engaged in defending the SEC Action which TFL submits is without merit. In order to effectively defend itself against the SEC Action, TFL requires certain narrow records of trading activity in the Debtors' possession focused around specific wallet information on the FTX platform used during a three-month period between March 1, 2022, to May 31, 2022, in addition to other information related to short attacks. The Proposed Limited Discovery I believe is necessary is information from the centralized FTX International and US Exchanges about wallets and trading accounts used to deposit/transfer/trade assets used by short sellers from March 1 to May 31, 2022; other wallets and trading accounts that could have been used by these or other short sellers; their balances/holdings; and identities of owners/controllers.

15. TFL cannot obtain—and Debtors cannot provide—such information by any other means. TFL seeks to discover these narrow records solely as they pertain to claims and defenses

of TFL in connection the SEC Action.

I declare under penalty of perjury that the foregoing is true and correct. Executed on July 18, 2023.

DocuSigned by:
Chris Amani
82ACF88CD64546C...
Chris Amani

Exhibit B

IN THE UNITED STATES BANKRUPTCY COURT
FOR THE DISTRICT OF DELAWARE

In re: FTX TRADING LTD., *et al.*,[1] Debtors.	Chapter 11 Case No. 22-11068 (JTD) (Jointly Administered)

ORDER GRANTING MOTION OF TERRAFORM LABS PTE LTD. FOR LEAVE TO SERVE RULE 45 DOCUMENT SUBPOENAS ON DEBTORS

Upon consideration of the Motion of Terraform Labs, Pte. Ltd. ("TFL") for an Order granting TFL's Motion for Leave to Serve Rule 45 Document Subpoenas on Debtors (the "Motion")[2]; and this Court having jurisdiction over this matter pursuant to 28 U.S.C. §§ 157 and 1334 and the Amended Standing Order of Reference from the U.S. District Court for the District of Delaware, dated February 29, 2012; and this Court having found that this is a core proceeding within the meaning of 28 U.S.C. § 157(b)(2); and that this Court may enter a final order consistent with Article III of the U.S. Constitution; and this Court having found venue of this proceeding and the Motion in this district is proper pursuant to 28 U.S.C. §§ 1408 and 1409; and this Court having found that notice of the Motion and opportunity for a hearing on the Motion were appropriate under the circumstances and no other notice need be provided; and the Court having reviewed the Motion; and the Court having determined that the legal and factual bases set forth in the Motion and in any corresponding declaration establish just cause for the relief granted herein; and upon

[1] The last four digits of FTX Trading Ltd. and West Realm Shires Services Inc. d/b/a FTX US's respective tax identification numbers are 3288 and 4002. A complete list of the numerous Debtors in these Chapter 11 cases, and their federal tax identification numbers, is available at https://cases.ra.kroll.com/FTX. Debtor Emergent Fidelity Technologies Ltd.'s principal place of business is Unit 3B, Bryson's Commercial Complex, Friars Hill Road, St. John's, Antigua and Barbuda.
[2] Capitalized terms not otherwise defined herein shall have the meanings ascribed to them in the Motion.

all of the proceedings had before the Court and after due deliberation and sufficient cause appearing therefor,

IT IS HEREBY ORDERED, ADJUDGED, AND DECREED THAT:

1. The Motion is GRANTED in its entirety.
2. Terraform Labs, Pte. Ltd ("TFL") is hereby authorized to serve and effectuate the discovery outlined in the Motion upon the Debtors. Such discovery as outlined in the Motion does not violate the automatic stay under 11 U.S.C. § 362(a).
3. The automatic stay imposed by 11 U.S.C. § 362(a), to the extent applicable, is hereby modified solely to the extent necessary for TFL to serve and effectuate the discovery outlined in the Motion upon the Debtors.
4. Any relief from the automatic stay shall be effective immediately upon entry of this Order and any stay period under the Federal Rules of Bankruptcy Procedure shall not apply.
5. Debtors can designate any production made in response to the discovery served by TFL pursuant to the Protective Order entered in the SEC Action, submitted as Exhibit C to the Motion.
6. This Court retains jurisdiction with respect to all matters arising from or related to the implementation of this Order.

Exhibit C

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

SECURITIES AND EXCHANGE COMMISSION,

Plaintiff,

v.

TERRAFORM LABS PTE LTD. and
DO HYEONG KWON,

Defendants.

1:23-CV-1346 (JSR)

PROTECTIVE ORDER

JED S. RAKOFF, U.S.D.J.

The parties having agreed to the following terms of confidentiality, and the Court having found that good cause exists for issuance of an appropriately tailored confidentiality order governing the pre-trial phase of this action, it is therefore hereby

ORDERED that any person subject to this Order -- including without limitation the parties to this action, their representatives, agents, experts and consultants, all third parties providing discovery in this action, and all other interested persons with actual or constructive notice of this Order-- shall adhere to the following terms, upon pain of contempt:

1. Any person subject to this Order who receives from any other person any "Discovery Material" (i.e., information of any kind provided in the course of discovery in this action) that is designated as "Confidential" pursuant to the terms of this Order shall not disclose such Confidential Discovery Material to anyone else except as expressly permitted hereunder.

2. The person producing any given Discovery Material may designate as Confidential only such portion of such material as consists of:

(a) previously nondisclosed financial information (including without limitation profitability reports or estimates, percentage fees, design fees, royalty rates, minimum guarantee payments, sales reports and sale margins);

(b) previously nondisclosed material relating to ownership or control of any non-public company;

(c) previously nondisclosed business plans, product development information, or marketing plans;

(d) any information of a personal or intimate nature regarding any individual, including any such individual's status as a whistleblower; or

(e) any other category of information hereinafter given confidential status by the Court.

3. With respect to the Confidential portion of any Discovery Material other than deposition transcripts and exhibits, the producing person or that person's counsel may designate such portion as "Confidential" by stamping or otherwise clearly marking as "Confidential" the protected portion in a manner that will not interfere with legibility or audibility, and by also producing for future public use another copy of said Discovery Material with the confidential information redacted. With respect to deposition

transcripts and exhibits, a producing person or that person's counsel may indicate on the record that a question calls for Confidential information, in which case the transcript of the designated testimony shall be bound in a separate volume and marked "Confidential Information Governed by Protective Order" by the reporter.

4. If at any time prior to the trial of this action, a producing person realizes that some portion[s] of Discovery Material that that person previously produced without limitation should be designated as Confidential, he may so designate by so apprising all parties in writing, and such designated portion[s] of the Discovery Material will thereafter be treated as Confidential under the terms of this Order.

5. Subject to the provisions of paragraphs 16 and 17 of this Order, no person subject to this Order other than the producing person shall disclose any of the Discovery Material designated by the producing person as Confidential to any other person whomsoever, except to:

(a) the parties to this action;

(b) counsel retained specifically for this action, including any paralegal, clerical and other assistant employed by such counsel and assigned to this matter;

(c) as to any document, its author, its addressee, and any other person indicated on the face of the document as having received a copy;

(d) any witness who counsel for a party in good faith believes may be called to testify at trial or deposition in this action, provided such person has first executed a Non-Disclosure Agreement in the form annexed as an Exhibit hereto;

(e) any person retained by a party to serve as an expert witness or otherwise provide specialized advice to counsel in connection with this action, provided such person has first executed a Non-Disclosure Agreement in the form annexed as an Exhibit hereto;

(f) stenographers engaged to transcribe depositions conducted in this action; and

(g) the Court and its support personnel.

6. Prior to any disclosure of any Confidential Discovery Material to any person referred to in subparagraphs 5(d) or 5(e) above, such person shall be provided by counsel with a copy of this Protective Order and shall sign a Non-Disclosure Agreement in the form annexed as an Exhibit hereto stating that that person has read this Order and agrees to be bound by its terms. Said counsel shall retain each signed Non-Disclosure Agreement, hold it in escrow, and produce it to opposing counsel either prior to such person being permitted to testify (at deposition or trial) or at the conclusion of the case, whichever comes first.

7. All Confidential Discovery Material filed with the Court, and all portions of pleadings, motions or other papers filed with the Court that disclose such Confidential Discovery Material, shall be filed

under seal with the Clerk of the Court and kept under seal until further order of the Court. The parties will use their best efforts to minimize such sealing. In any event, any party filing a motion or any other papers with the Court under seal shall also publicly file a redacted copy of the same, via the Court's Electronic Case Filing system, that redacts only the Confidential Discovery Material itself, and not text that in no material way reveals the Confidential Discovery Material. Pursuant to Rule 14 of the Individual Rules of Practice of the Honorable Jed S. Rakoff, any documents required to be filed under seal pursuant to this paragraph may be filed under seal without obtaining prior approval of the Court.

8. Any party who either objects to any designation of confidentiality, or who, by contrast, requests still further limits on disclosure (such as "attorneys' eyes only" in extraordinary circumstances), may at any time prior to the trial of this action serve upon counsel for the designating person a written notice stating with particularity the grounds of the objection or request. If agreement cannot be reached promptly, counsel for all affected persons will convene a joint telephone call with the Court to obtain a ruling.

9. All persons are hereby placed on notice that the Court is unlikely to seal or otherwise afford confidential treatment to any Discovery Material introduced in evidence at trial, even if such

material has previously been sealed or designated as Confidential. The Court also retains unfettered discretion whether or not to afford confidential treatment to any Confidential Document or information contained in any Confidential Document submitted to the Court in connection with any motion, application, or proceeding that may result in an order and/or decision by the Court.

10. Each person who has access to Discovery Material that has been designated as Confidential shall take all due precautions to prevent the unauthorized or inadvertent disclosure of such material.

11. If, in connection with this litigation, a party inadvertently discloses information subject to a claim of attorney-client privilege or attorney work product protection ("Inadvertently Disclosed Information"), such disclosure shall not constitute or be deemed a waiver or forfeiture of any claim of privilege or work product protection with respect to the Inadvertently Disclosed Information and its subject matter.

12. If a disclosing party makes a claim of inadvertent disclosure, the receiving party shall not thereafter review the Inadvertently Disclosed Information for any purpose, except by order of the Court. The receiving party shall, within five business days, return or destroy all copies of the Inadvertently Disclosed Information, and provide a certification of counsel that all such information has been returned or destroyed.

13. Within five business days of the notification that such

Inadvertently Disclosed Information has been returned or destroyed, the disclosing party shall produce a privilege log with respect to the Inadvertently Disclosed Information.

14. As with any information redacted or withheld, the receiving party may move the Court for an Order compelling production of the Inadvertently Disclosed Information. The motion shall be filed under seal, and shall not assert as a ground for entering such an Order the fact or circumstances of the inadvertent production.

15. The disclosing party retains the burden of establishing the privileged or protected nature of any Inadvertently Disclosed Information. Nothing in this Order shall limit the right of any party to request an in camera review of the Inadvertently Disclosed Information.

16. This Protective Order shall survive the termination of the litigation. Within 30 days of the final disposition of this action, all Discovery Material designated as "Confidential," and all copies thereof, shall be promptly returned to the producing person, or, upon permission of the producing person, destroyed, except to the extent that, with regard to any documents in the possession of Plaintiff Securities and Exchange Commission ("Commission"), the Commission or its staff determines that it needs to retain such documents to fulfill its record-keeping obligations, its obligations under the Freedom of Information Act, 5 U.S.C. § 552, et seq., and the applicable rules and regulations promulgated thereunder, or to carry

out any permitted uses under 17 C.F.R. 240.24c-1(b).

17. Nothing in this Protective Order shall be construed to have any effect on the obligations of the Commission under the Freedom of Information Act, 5 U.S.C. § 552, et seq., or to limit or restrict the Commission from using or disclosing any materials to the extent otherwise required by law or permitted pursuant to 17 C.F.R. § 240.24c-1(b). Provided, however, that the Commission shall notify the party that produced the Confidential Discovery Material in the event it discloses such material as permitted pursuant to 17 C.F.R. § 240.24c-1(b). In the event the Commission determines that providing notice to a party regarding the sharing of Confidential Discovery Material would compromise law enforcement interests, the Commission may apply to the Court for an order relieving it of its notification obligation.

18. This Court shall retain jurisdiction over all persons subject to this Order to the extent necessary to enforce any obligations arising hereunder or to impose sanctions for any contempt thereof.

SO STIPULATED AND AGREED.

/s/ Devon Staren
Counsel for the SEC
Dated: May 15, 2023

/s/ Douglas W. Henkin
Counsel for Defendants
Dated: May 15, 2023

SO ORDERED.

JED S. RAKOFF, U.S.D.J.

Dated: New York, New York
5/15/23

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

SECURITIES AND EXCHANGE COMMISSION, Plaintiff, v. TERRAFORM LABS PTE LTD. and DO HYEONG KWON, Defendants.	##-CV-#### (JSR) **NON-DISCLOSURE AGREEMENT**

I, ___________________________, acknowledge that I have read and understand the Protective Order in this action governing the non-disclosure of those portions of Discovery Material that have been designated as Confidential. I agree that I will not disclose such Confidential Discovery Material to anyone other than for purposes of this litigation and that at the conclusion of the litigation I will return all discovery information to the party or attorney from whom I received it. By acknowledging these obligations under the Protective Order, I understand that I am submitting myself to the jurisdiction of the United States District Court for the Southern District of New York for the purpose of any issue or dispute arising hereunder and that my willful violation of any term of the Protective Order could subject me to punishment for contempt of Court.

Dated: ______________ ______________________________

IN THE UNITED STATES BANKRUPTCY COURT
FOR THE DISTRICT OF DELAWARE

In re: FTX TRADING LTD., *et al.*,[1] Debtors.	Chapter 11 Case No. 22-11068 (JTD) (Jointly Administered) **Hearing Date: August 2, 2023 at 10:00 a.m. (ET)** **Objection Deadline: July 26, 2023 at 4:00 p.m. (ET)**

NOTICE OF MOTION OF TERRAFORM LABS PTE LTD. FOR LEAVE TO SERVE RULE 45 DOCUMENT SUBPOENAS ON DEBTORS

PLEASE TAKE NOTICE that on July 11, 2023 Terraform Labs, Pte. Ltd. ("TFL") filed the *Motion for Leave to Serve Rule 45 Document Subpoenas on Debtors* (the "Motion") with the U.S. Bankruptcy Court for the District of Delaware (the "Bankruptcy Court").

PLEASE TAKE FURTHER NOTICE that objections, if any, to the entry of an order approving the Motion must be (a) in writing and served on or before **Wednesday, July 26, 2023 at 4:00 p.m. (Eastern Standard Time)** (the "Objection Deadline"); (b) filed with the Clerk of the United States Bankruptcy Court for the District of Delaware, 824 Market Street, 3rd Floor, Wilmington, Delaware 19801; and (c) served as to be received on or before the Objection Deadline by the undersigned attorneys for TFL.

PLEASE TAKE FURTHER NOTICE that only objections made in writing and timely filed and received, in accordance with the procedures above, will be considered by the Bankruptcy Court at the hearing described below.

PLEASE TAKE FURTHER NOTICE THAT A HEARING ON THE MOTION WILL BE HELD ON **Wednesday August 2, 2023 AT 10:00 A.M. (EASTERN TIME)** BEFORE THE HONORABLE JOHN T. DORSEY AT THE UNITED STATES BANKRUPTCY COURT FOR THE DISTRICT OF DELAWARE, 824 MARKET STREET, 5TH FLOOR, COURTROOM 5, WILMINGTON, DELAWARE 19801.

PLEASE TAKE FURTHER NOTICE THAT IF YOU FAIL TO RESPOND IN ACCORDANCE WITH THIS NOTICE, THE COURT MAY GRANT THE RELIEF REQUESTED IN THE MOTION WITHOUT FURTHER NOTICE OR HEARING.

[1] The last four digits of FTX Trading Ltd. and West Realm Shires Services Inc. d/b/a FTX US's respective tax identification numbers are 3288 and 4002. A complete list of the numerous Debtors in these Chapter 11 cases, and their federal tax identification numbers, is available at https://cases.ra.kroll.com/FTX. Debtor Emergent Fidelity Technologies Ltd.'s principal place of business is Unit 3B, Bryson's Commercial Complex, Friars Hill Road, St. John's, Antigua and Barbuda.

Date: July 19, 2023

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**IN THE UNITED STATES BANKRUPTCY COURT
FOR THE DISTRICT OF DELAWARE**

In re: FTX TRADING LTD., *et al.*,[1] Debtors.	Chapter 11 Case No. 22-11068 (JTD) (Jointly Administered)

CERTIFICATE OF SERVICE

I, Daniel N. Brogan, hereby certify that on July 19, 2023, a copy of the *Motion of Terraform Labs PTE Ltd. for Leave to Serve Rule 45 Document Subpoenas on Debtors* was served on the parties on the attached service list in the manner indicated.

Date: July 19, 2023

**BENESCH, FRIEDLANDER,
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[1] The last four digits of FTX Trading Ltd. and West Realm Shires Services Inc. d/b/a FTX US's respective tax identification numbers are 3288 and 4002. A complete list of the numerous Debtors in these Chapter 11 cases, and their federal tax identification numbers, is available at https://cases.ra.kroll.com/FTX. Debtor Emergent Fidelity Technologies Ltd.'s principal place of business is Unit 3B, Bryson's Commercial Complex, Friars Hill Road, St. John's, Antigua and Barbuda.

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